



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

**DOT-E 11071
(FIRST REVISION)**

EXPIRATION DATE: December 31, 1993

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. **GRANTEE** Riedel Environmental Services, Inc., Portland, Oregon.
2. **PURPOSE AND LIMITATION:** This emergency exemption authorizes the transportation in commerce of waste hazardous materials in certain non-DOT specification packagings described in paragraph 7 below. Also, these shipments are not subject to any other regulations in 49 CFR Parts 171, 172, 173 and 177 except as specifically stated herein.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR Part 171, 172, 173, and 177 exceptions stated herein.
5. **BASIS.** This exemption is based on Riedel Environmental Services, Inc.'s application of July 20, 1993, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary because of the declared emergency due to floods throughout the Midwestern United States and supplemental letter dated September 27, 1993.
6. **HAZARDOUS MATERIALS** - Unidentified materials that were dislocated due to floods, excluding explosives, toxic gases, and flammable gases.
7. **SAFETY CONTROL MEASURES:**

PACKAGING - Strong leak-proof metal, plastic, or lined wood non-bulk packagings suitable for the liquids or solids to be transported. Packagings must conform to the requirements of 49 CFR 173.24.

8. SPECIAL PROVISIONS.

- a. In place of the requirements of Subpart C of Part 172, each vehicle must carry a document displaying the following statement:

The materials being transported in this vehicle have been recovered from locations affected by the flood. Some may fall within DOT Hazard Classes, but this has not as yet been determined. Therefore, DOT exemption E-11071 has been issued to recognize the immediate need for this operation. If this vehicle is involved in an accident, use DOT Emergency Response Guidebook Guide 11.

- b. Each vehicle must display DANGEROUS placards in the same manner as required for mixed loads in Subpart F of 49 CFR Part 172.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

10. MODAL REQUIREMENTS:

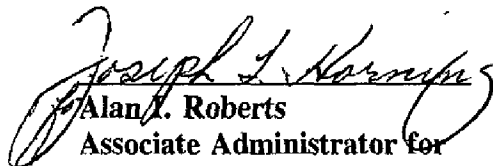
- a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

- All terms and conditions prescribed in this exemption.
- Any use or application of this exemption, including display of its number, when the exemption has expired.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan L. Roberts
Associate Administrator for
Hazardous Materials Safety

NOV 4 1993

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.

Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA